

SUPREME COURT OF THE STATE OF NEW YORK
CIVIL TERM: COUNTY OF BRONX

JOSEFINA MEJIA, YANESKA MEJIA, KARELYN,
MEJIA, NEVEAHA MEJIA, an infant,

Plaintiffs,

SUMMONS

—against—

Index No.:

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DEPUTY INSPECTOR THOMAS J.
CONNOLLY, NYPD DETECTIVE ROSARIO, NYPD
OFFICIAL GODRICK (Shield # 4128), NYPD
OFFICIAL VASQUEZ (Shield # 2883-6), UNKNOWN
NEW YORK CITY POLICE OFFICERS AND
DETECTIVES OF THE 48th PRECINCT,

Defendants.

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue designated is New York County.

DATED: New York, New York
April 30, 2013

Yours, etc.,



MATTHEW H. GOLDSMITH, ESQ.
Goldsmith & Associates, PLLC
Attorneys for Plaintiffs
22 Cortlandt Street, 16th Floor
New York, NY 10007
(212) 419-0388 / fax (212) 419-0390
mhgoldsmith@mgaplawn.com

SUPREME COURT OF THE STATE OF NEW YORK
CIVIL TERM: COUNTY OF BRONX

JOSEFINA MEJIA, YANESKA MEJIA, KARELYN,
MEJIA, NEVEAHA MEJIA, an infant,

Plaintiffs,

COMPLAINT

—against—

Index No.:

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DEPUTY INSPECTOR THOMAS J.
CONNOLLY, NYPD DETECTIVE ROSARIO, NYPD
OFFICIAL GODRICK (Shield # 4128), NYPD
OFFICIAL VASQUEZ (Shield # 2883-6), UNKNOWN
NEW YORK CITY POLICE OFFICERS AND
DETECTIVES OF THE 48th PRECINCT,

Defendants.

Plaintiffs, Josefina Mejia, Yaneska Mejia, Karelyn Mejia and Neveaha Mejia, an infant, bring this action by their attorneys, Goldsmith & Associates, PLLC, against the defendants and alleges:

1. At all relevant times, plaintiff, Josefina Mejia ("Josefina M."), is the mother of plaintiffs, Yaneska Mejia ("Yaneska M.") and Karelyn Mejia ("Karelyn M."), and grandmother to plaintiff, Neveah Mejia, an infant ("Neveaha M.").
2. At all relevant times, plaintiffs, Josefina M., Yaneska M. and Karelyn M. resided together at 611 Crotona Park North, Apartment 18G, in the Court of Bronx for the State of New York ("Residence").
3. Upon information and belief, the defendant, City of New York ("City"), is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

4. Upon information and belief, the defendant, New York City Police Department (“NYPD”), is an agency of the City.

5. Upon information and belief, the defendant, Deputy Inspector Thomas J. Connolly is the commanding officer of the 48th precinct for the NYPD (“Inspector Connolly”).

6. Upon information and belief, the defendants, Detective Rosario (“Det. Rosario”), NYPD Official Godrick (Shield # 4128)(“Godrick”), NYPD Official Vasquez (Shield # 2883-6)(“Vasquez”), and Unknown New York City Police Officers and Detectives, are officers, agents and/or employees of the 48th precinct for the NYPD (collectively, “NYPD Officials”).

7. Upon further information and belief, three of the unknown NYPD Officials are named “Taveras,” “DeWitt,” and “Fernandez.”

8. That on September 7, 2012, the Office of the Comptroller for the City of New York acknowledged receipt of a notice of claim concerning this action, dated August 13, 2012; that more than thirty (30) days have elapsed since its service; that defendants and its comptroller have failed, neglected, refused to pay, settle, compromise, or otherwise adjust the claim; and that this action has been commenced within one year and ninety days after the following causes of action have accrued.

Statement of Relevant Facts

9. On July 25, 2012 at about 12:30am, plaintiffs were present and sleeping inside the Residence.

10. At or around that time, plaintiffs were awoken by NYPD Officials who were loudly screaming and pounding on the front door of the Residence.

11. The NYPD Officials then entered and demanded that plaintiffs immediately exit the Residence by screaming, "get out" repeatedly while causing a crowd of neighbors to gather.

12. Josefina M. informed one of the NYPD Officials that Neveah M., an infant, was present in the Residence and requested that she be allowed to carry her outside. That NYPD Official ignored her request and coerced Josefina M. to exit while abandoning Neveah M. inside the apartment.

13. The NYPD Officials also physically removed Karelyn M. from the entrance hall portion of the Residence and ordered her to exit though she was not fully clothed.

14. The NYPD Officials stated that they were present to make an arrest of "Nicolas Mejia," a person related to the plaintiffs. Plaintiffs informed the NYPD Officials that he had not lived in the Residence for almost three years. On November 13, 2009, the City was put on written notice that Nicolas Mejia did not live in the Residence.

15. Plaintiffs stated that they did not consent to this entry and search and requested that the NYPD Officials furnish a warrant to enter and/or search the premises, however, none was produced or existed, as evidenced by the NYPD Officers' response that no warrant was required since the suspect was wanted for assault.

16. While the NYPD Officials were inside the Residence they conducted a search of rooms, closets and drawers located therein while destroying property belonging to plaintiffs, as well as the structure of the Residence itself.

17. During this time, Josefina M., Yaneska M. and Karelyn M. waited outside while Neveah remained inside alone and unattended.

18. Prior to and subsequent to July 25, 2012, NYPD Officials have constantly come to the Residence to question the plaintiffs about Nicolas Mejia and other matters, including on or about October 20, 2012 by Godrick and Vasquez, and on December 6, 2012 by Det. Rosario and another NYPD Official.

FIRST CAUSE OF ACTION
NEGLIGENCE PER SE

19. Plaintiffs repeat and re-allege ¶¶ 1-18.

20. On July 25, 2012, NYPD Officials conducted a search of the Residence without a search warrant and no privilege in violation of New York Criminal Procedure Law Article 690 and New York State Penal Law § 240.26.

21. As a result of the NYPD Officials' unlawful search, plaintiffs suffered property damage, loss of privacy, deprivation of their right to be secure in their home and person from unwarranted searches and seizures, pain and suffering, psychological trauma, humiliation, as well as physical and extreme emotional injuries.

SECOND CAUSE OF ACTION
NEGLIGENCE PER SE

22. Plaintiffs repeat and re-allege ¶¶ 1-21.

23. On July 25, 2012, NYPD Officials left Neveaha M., an infant, alone and unattended, thereby knowingly acting in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old in violation of New York Penal Law § 260.10(1).

24. Upon information and belief, as a result of the NYPD Officials' negligence, Neveah M. suffered emotional injuries and loss of care.

THIRD CAUSE OF ACTION
TRESPASS

25. Plaintiffs repeat and re-allege ¶¶ 1-24.

26. At all relevant times, plaintiffs were lawful tenants of the Residence.

27. On July 25, 2012, NYPD Officials entered the Residence without lawful justification.

28. As a result of the NYPD Officials' unlawful trespass, plaintiffs suffered property damage, loss of privacy, deprivation of their right to be secure in their home and person from unwarranted searches and seizures, pain and suffering, psychological trauma, humiliation, as well as physical and extreme emotional injuries.

FOURTH CAUSE OF ACTION
CONVERSION

29. Plaintiffs repeat and re-allege ¶¶ 1-28.

30. At all relevant times, the plaintiff owned personal property inside of the residence, including but not limited to: the structure of the Residence itself, drawers, a couch, closets and other tangible property.

31. On July 25, 2012, NYPD Officials entered the Residence where the personal property described above was then stored, and willfully and maliciously destroyed the property.

32. As a result of the NYPD Officials' conversion, plaintiffs suffered property damage.

FIFTH & SIXTH CAUSES OF ACTION
ASSAULT & BATTERY

33. Plaintiffs repeat and re-allege ¶¶ 1-32.

34. On July 25, 2012, an NYPD Official assaulted Karelyn M. by grabbing her forcibly and without justification.

35. The actions of the NYPD Official were willful, intentional and unwarranted, and without any just cause, provocation or consent.

36. As a result of the NYPD Official's unlawful assault and battery, Karelyn M. has suffered from pain and suffering, psychological trauma, humiliation, as well as physical and extreme emotional injuries.

SEVENTH, EIGHTH & NINTH CAUSES OF ACTION
CIVIL RIGHTS LAW 42 U.S.C. § 1983

37. Plaintiffs repeat and re-allege ¶¶ 1-36.

38. Upon information and belief, at all relevant times, the NYPD Officials were acting in their capacity as officers, agents and employees of the NYPD.

39. At all relevant times, the NYPD Officials were acting under color of law, to wit, the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

40. The above actions of defendants resulted in plaintiffs being deprived of the following rights under the United States Constitution as follows: all plaintiffs' freedom from search and seizure, and Karelyn M.'s freedom from assault and battery to her person.

41. Defendants subjected plaintiffs to such deprivations maliciously, recklessly or with deliberate indifference to plaintiff's rights.

42. That as a result of the aforementioned, plaintiffs suffered property damage, loss of privacy, deprivation of their right to be secure in their home and person from unwarranted searches and seizures, pain and suffering, psychological trauma, humiliation, as well as physical and extreme emotional injuries.

TENTH CAUSE OF ACTION
CIVIL RIGHTS LAW 42 U.S.C. § 1983

43. Plaintiffs repeat and re-allege ¶¶ 1-42.

44. The defendants repeated unwarranted visits to the Residence constitute a custom and practice of the 48th Precinct in violation of plaintiffs' civil rights.

45. The City, NYPD and/or Inspector Connolly have failed to properly train the NYPD Officials of the 48th Precinct with a deliberate indifference to the plaintiffs' constitutional rights.

46. That as a result of the aforementioned, plaintiffs suffered property damage, loss of privacy, deprivation of their right to be secure in their home and person from unwarranted searches and seizures, pain and suffering, psychological trauma, humiliation, as well as physical and extreme emotional injuries.

47. The amount of damages sought in this action exceeds the jurisdiction limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiffs demand judgment against defendants for actual, compensatory, exemplary and punitive damages in an amount to be determined upon the trial of this action, together with interest, costs and disbursements.

DATED: New York, New York
April 30, 2013

Yours etc.,



MATTHEW H. GOLDSMITH, Esq.
Goldsmith & Associates, PLLC
Attorneys for Plaintiffs
22 Cortlandt Street, 16th Floor
New York, NY 10007
(212) 419-0388 / fax (212) 419-0390
mhgoldsmith@mgaplawn.com

ATTORNEY VERIFICATION

The undersigned affirms under penalties of perjury that the *Complaint* is true, except as to those matters alleged on information and belief, and that as to those matters they are believed to be true. The verification of this pleading is not made by the plaintiffs as they are not in the county where I have my office.

DATED: New York, New York
April 30, 2013

Yours, etc.,



MATTHEW H. GOLDSMITH, ESQ.
Goldsmith & Associates, PLLC
Attorneys for Plaintiffs
22 Cortlandt Street, 16th Floor
New York, NY 10007
(212) 419-0388 / fax (212) 419-0390
mhgoldsmith@mgaplawn.com